

**Court No. - 29**

**Case :-** WRIT - C No. - 20267 of 2007

**Petitioner :-** Pankaj Katiyar

**Respondent :-** U.P. Power Corporation Ltd. Through Its Managing D.& Others

**Counsel for Petitioner :-** Dharam Pal Singh, S. Niranjana

**Counsel for Respondent :-** C.S.C., R. Saxena

**Hon'ble Tarun Agarwala, J.**

**Hon'ble Vivek Chaudhary, J.**

On the illness slip of the learned counsel for the petitioner, the case is passed over today.

**Order Date :-** 31.3.2017

Shahroz

**(Vivek Chaudhary, J.) (Tarun Agarwala, J.)**

**Court No. - 35**

**Case :-** WRIT - C No. - 20267 of 2007

**Petitioner :-** Pankaj Katiyar

**Respondent :-** U.P. Power Corporation Ltd. Through Its Managing D.& Others

**Counsel for Petitioner :-** Dharam Pal Singh, S. Niranjana

**Counsel for Respondent :-** C.S.C., R. Saxena

**Hon'ble Bharati Sapru, J.**

**Hon'ble Shashi Kant, J.**

List in the next cause list showing the name of Sri Baleshwar Chaturvedi as counsel for the respondents.

**Order Date :-** 16.5.2017

S.P.

**Court No. - 35**

**Case :-** WRIT - C No. - 20267 of 2007

**Petitioner :-** Pankaj Katiyar

**Respondent :-** U.P. Power Corporation Ltd. Through Its Managing D.& Others

**Counsel for Petitioner :-** Dharam Pal Singh, D.P.S. Niranjana, S. Niranjana

**Counsel for Respondent :-** C.S.C., Baleshwar Chaturvedi, R. Saxena

**Hon'ble Bharati Sapru, J.**

**Hon'ble Shashi Kant, J.**

Sri Baleshwar Chaturvedi, learned counsel for the respondents prays for and is granted two weeks' time to reconstruct his file.

List thereafter.

**Order Date :-** 25.5.2017

Monika

**Court No. - 58**

**Case :-** WRIT - C No. - 20267 of 2007

**Petitioner :-** Pankaj Katiyar

**Respondent :-** U.P. Power Corporation Ltd. Through Its  
Managing D.& Others

**Counsel for Petitioner :-** Dharam Pal Singh,D.P.S.Niranjan,S.  
Niranjan

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi,R.  
Saxena

**Hon'ble Shabihul Hasnain,J.**

**Hon'ble Siddhartha Varma,J.**

Heard Sri Mangal Roy, Advocate holding brief of Sri Dharma Pal Singh, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondents.

There is a small dispute regarding the payment of dues and for which recovery certificate dated 19.9.2005 has been issued against the petitioner.

Learned counsel for the respondents has submitted that under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the matter is referable to the concerned Executive Engineer of the District Kanpur Dehat.

In such a matter which can appropriately be decided by the appropriate Authority under the Act, it is, accordingly, provided that the petitioner may file a fresh representation along with the details to the respondent no.2-Executive Engineer, Kanpur Dehat within a maximum period of one month from today and, if such a representation is made before the concerned Authority, the same shall be decided within the maximum period of two months from the date of a certified copy of this order is produced.

Till the disposal of this representation by the Executive Engineer, the recovery certificate dated 19.9.2005 as contained in Annexure No.-5 to the writ petition shall be kept in abeyance.

The writ petition is disposed of.

**Order Date :-** 29.8.2017

Ashish Pd.